SECTIONS 408–415 were repealed by act Oct. 14, 1940, ch. 876, title I, subchap. V, § 504, 54 Stat. 1172. Sections 408, 409, relating to naturalization forms, were from act June 29, 1906, ch. 3592, §§ 3, 27, respectively, 34 Stat. 596, 603; present provisions are contained in sections 701 (c) and 727 (d) of this title. Sections 410–415, relating to the punishment of crimes in connection with the naturalization of aliens, were from act June 29, 1906, ch. 3592, §§ 18, 20–24, respectively, 34 Stat. 602, 603; present provisions are now contained in sections 738 and 746 of this title.

SECTION 416, authorizing the punishment of offenses against the naturalization laws committed prior to May 9, 1918, under laws then in effect but since repealed, is now set out in note under section 746 of this title. It was from act May 9, 1918, ch. 69, § 2, 40 Stat. 547.

REPEAL

Effective date and saving clauses of act Oct. 14, 1940, see sections 906, 904 note, and 747 of this title.

## Chapter 10.—ALIEN REGISTRATION

Sec.
451. Alien seeking entry into United States.
452 Registration of aliens in United States.
453. Special provisions governing registration.
(a) Extension of time for registration.
(b) Foreign government officials.
(c) Registration of special classes of aliens.
454. Place of registration; duties of postmasters.
455 Forms and procedure; records as confidential; oaths.
456. Notice of change of address.
457. Penalties.
458. Administration and enforcement of registration law.
459. Definitions and effective date.
(a) Definitions.
(b) Effective date.
460. Registration of aliens in Canal Zone.

NATIONALITY ACT OF 1940

On October 14, 1940, and subsequent to the enactment of this chapter, Congress passed the Nationality Act of 1940 (see section 501 et seq. of this title) for the purpose of consolidating and restating the laws of the United States upon citizenship, naturalization, and expatriation. Said act contains further provisions relating to registry of aliens (see sections 728 and 746 (l) of this title), and section 504 thereof, in addition to certain specific repeals, provided that all acts or parts of acts in conflict therewith were thereby repealed.

### § 451. Alien seeking entry into United States.

No visa shall hereafter be issued to any alien seeking to enter the United States unless said alien has been registered and fingerprinted in duplicate. One copy of the registration and fingerprint record shall be retained by the consul. The second copy shall be attached to the alien's visa and shall be taken up by the examining immigrant inspector at the port of arrival of the alien in the United States and forwarded to the Department of Justice, at Washington, District of Columbia.

Any alien seeking to enter the United States who does not present a visa (except in emergency cases defined by the Secretary of State), a reentry permit, or a berder-crossing identification card shall be excluded from admission to the United States. (June 28, 1940, ch. 439, title III, § 30, 54 Stat. 673.)

SHORT TITLE

Section 41 of act June 28, 1940, cited to text, provided: "This act (sections 137, 155, 156a, 451–460 of this title and sections 9–13 of Title 18, Criminal Code and Criminal Procedure) may be cited as the 'Alien Registration Act, 1940.'"

SAVING CLAUSE

Section 40 of act June 28, 1940, cited to text, provided as follows: "SEC. 40. If any provision of this Act, or the application thereof to any person or circumstance, is held invalid, the remainder of the Act, and the application of such provision to other persons or circumstances, shall not be affected thereby."

### § 452. Registration of aliens in United States.

(a) It shall be the duty of every alien now or hereafter in the United States, who (1) is fourteen years of age or older, (2) has not been registered and fingerprinted under section 451 of this title, and (3) remains in the United States for thirty days or longer, to apply for registration and to be fingerprinted before the expiration of such thirty days.

(b) It shall be the duty of every parent or legal guardian of any alien now or hereafter in the United States, who (1) is less than fourteen years of age, (2) has not been registered under section 451 of this title, and (3) remains in the United States for thirty days or longer, to apply for the registration of such alien before the expiration of such thirty days. Whenever any alien attains his fourteenth birthday in the United States he shall, within thirty days thereafter, apply in person for registration and to be fingerprinted. (June 28, 1940, ch. 439, title III, § 31, 54 Stat. 673.)

SHORT TITLE AND SAVING CLAUSE

See note under section 451 of this title.

### § 453. Special provisions governing registration.

Notwithstanding the provisions of sections 451 and 452 of this title—

(a) Extension of time for registration.

The application for the registration and fingerprinting, or for the registration, of any alien who is in the United States on the effective date of such sections may be made at any time within four months after such date.

(b) Foreign government officials.

No foreign government official, or member of his family, shall be required to be registered or fingerprinted under this chapter.

(c) Registration of special classes of aliens.

The Commissioner is authorized to prescribe, with the approval of the Attorney General, special regulations for the registration and fingerprinting of (1) alien seamen, (2) holders of border-crossing identification cards, (3) aliens confined in institutions within the United States, (4) aliens under order of deportation, and (5) aliens of any other class not lawfully admitted to the United States for permanent residence. (June 28, 1940, ch. 439, title III, § 32, 54 Stat. 674.)

SHORT TITLE AND SAVING CLAUSE

See note under section 451 of this title.

### § 454. Place of registration; duties of postmasters.

(a) All applications for registration and fingerprinting under section 452 of this title shall be made at post offices or such other places as may be designated by the Commissioner.

(b) It shall be the duty of every postmaster, with such assistance as shall be provided by the Commissioner, to register and fingerprint any applicant for registration and fingerprinting under such section, and for such purposes to designate appropriate space in the local post office for such registration and

fingerprinting. Every postmaster shall forward promptly to the Department of Justice, at Washington, District of Columbia, the registration and fingerprint record of every alien registered and fingerprinted by him. The Commissioner may designate such other places for registration and fingerprinting as may be necessary for carrying out the provisions of sections 137, 155, 156a, 451–460 of this title and sections 9–13 of Title 18, and provide for registration and fingerprinting of aliens at such places by officers or employees of the Immigration and Naturalization Service designated by the Commissioner. The duties imposed upon any postmaster under said sections shall also be performed by any employees at the post office of such postmaster who are designated by the postmaster for such purpose. (June 23, 1940, ch. 439, title III, § 33, 54 Stat. 674.)

SHORT TITLE AND SAVING CLAUSE

See note under section 451 of this title.

§ 455. Forms and procedure; records as confidential; oaths.

(a) The Commissioner is authorized and directed to prepare forms for the registration and fingerprinting of aliens under this chapter. Such forms shall contain inquiries with respect to (1) the date and place of entry of the alien into the United States; (2) activities in which he has been and intends to be engaged; (3) the length of time he expects to remain in the United States; (4) the criminal record, if any, of such alien; and (5) such additional matters as may be prescribed by the Commissioner, with the approval of the Attorney General.

(b) All registration and fingerprint records made under the provisions of this chapter shall be secret and confidential, and shall be made available only to such persons or agencies as may be designated by the Commissioner, with the approval of the Attorney General.

(c) Every person required to apply for the registration of himself or another under this chapter shall submit under oath the information required for such registration. Any person authorized to register aliens under this chapter shall be authorized to administer oaths for such purpose. (June 28, 1940, ch. 439, title III, § 34, 54 Stat. 674.)

SHORT TITLE AND SAVING CLAUSE

See note under section 451 of this title.

§ 456. Notice of change of address.

Any alien required to be registered under this chapter who is a resident of the United States shall notify the Commissioner in writing of each change of residence and new address within five days from the date of such change. Any other alien required to be registered under this chapter shall notify the Commissioner in writing of his address at the expiration of each three months' period of residence in the United States. In the case of an alien for whom a parent or legal guardian is required to apply for registration, the notices required by this section shall be given by such parent or legal guardian. (June 28, 1940, ch. 439, title III, § 35, 54 Stat. 675.)

SHORT TITLE AND SAVING CLAUSE

See note under section 451 of this title.

§ 457. Penalties.

(a) Any alien required to apply for registration and to be fingerprinted who willfully fails or refuses to make such application or to be fingerprinted, and any parent or legal guardian required to apply for the registration of any alien who willfully fails or refuses to file application for the registration of such alien shall, upon conviction thereof be fined not to exceed $1,000 or be imprisoned not more than six months, or both.

(b) Any alien, or any parent or legal guardian of any alien, who fails to give written notice to the Commissioner of change of address as required by section 456 of this title shall, upon conviction thereof, be fined not to exceed $100, or be imprisoned not more than thirty days, or both.

(c) Any alien or any parent or legal guardian of any alien, who files an application for registration containing statements known by him to be false, or who procures or attempts to procure registration of himself or another person through fraud, shall, upon conviction thereof, be fined not to exceed $1,000, or be imprisoned not more than six months, or both; and any alien so convicted within five years after entry into the United States shall, upon the warrant of the Attorney General, be taken into custody and be deported in the manner provided in sections 155 and 156 of this title. (June 28, 1940, ch. 439, title III, § 36, 54 Stat. 675.)

SHORT TITLE AND SAVING CLAUSE

See note under section 451 of this title.

§ 458. Administration and enforcement of registration law.

(a) The Commissioner, with the approval of the Attorney General, is authorized and empowered to make and prescribe, and from time to time to change and amend, such rules and regulations not in conflict with sections 137, 155, 156a, 451–460 of this title and sections 9–13 of Title 18 as he may deem necessary and proper in aid of the administration and enforcement of this chapter (including provisions for the identification of aliens registered under this chapter); except that all such rules and regulations, insofar as they relate to the performance of functions by consular officers or officers or employees in the Postal Service, shall be prescribed by the Secretary of State and the Postmaster General, respectively, upon recommendation of the Attorney General. The powers conferred upon the Attorney General by sections 137, 155, 156a, 451–460 of this title and sections 9–13 of Title 18 and all other powers of the Attorney General relating to the administration of the Immigration and Naturalization Service may be exercised by the Attorney General through such officers of the Department of Justice, including officers of the Immigration and Naturalization Service, attorneys, special attorneys, and special assistants to the Attorney General, as he may designate specifically for such purposes.

(b) The Commissioner is authorized to make such expenditures, to employ such additional temporary and permanent employees, and to rent such quarters outside the District of Columbia as may be necessary for carrying out the provisions of this chapter. (June 28, 1940, ch. 439, title III, § 37, 54 Stat. 675.)

SHORT TITLE AND SAVING CLAUSE

See note under section 451 of this title.

§ 459. Definitions and effective date. (a) Definitions.

For the purposes of this chapter—

(1) the term "United States", when used in a geographical sense, means the States, the Territories of Alaska and Hawaii, the District of Columbia, Puerto Rico, and the Virgin Islands;

(2) the term "Commissioner" means the Commissioner of Immigration and Naturalization.

(b) Effective date.

The provisions of this chapter shall take effect on June 28, 1940; except that sections 451 and 452 of this title shall take effect sixty days after said date. (June 28, 1940, ch. 439, title III, § 38, 54 Stat. 675.)

SHORT TITLE AND SAVING CLAUSE

See note under section 451 of this title.

§ 460. Registration of aliens in Canal Zone.

The President is authorized to provide, by Executive order, for the registration and fingerprinting, in a manner as nearly similar to that provided in this chapter as he deems practicable, of aliens in the Panama Canal Zone. (June 28, 1940, ch. 439, title III, § 39, 54 Stat. 676.)

SHORT TITLE AND SAVING CLAUSE

See note under section 451 of this title.

## Chapter 11.—NATIONALITY CODE

### SUBCHAPTER I.—DEFINITIONS

Sec.
501. General definitions for purposes of chapter.
502. General definitions for purposes of subchapter III.
503. Foreign state.
504. Place of general abode.

### SUBCHAPTER II.—NATIONALITY AT BIRTH

601. Persons born nationals and citizens.
602. Citizens by birth in Puerto Rico on or after April 11, 1899.
603. Citizens by birth in Canal Zone or Panama on or after February 26, 1904.
604. Persons born nationals but not citizens.
605. Children born out of wedlock.

### SUBCHAPTER III.—NATIONALITY THROUGH NATURALIZATION

701. Jurisdiction to naturalize.
702. Eligibility for naturalization; sex or marriage.
703. Same; race.
704. Same; language.
705. Same; belief in government and property rights.
706. Same; desertion from armed forces or evasion of draft during war.
707. Same; residence.
708. Same; residence of clergymen, etc., temporarily absent in professional capacity.
709. Requirements as to proof.
710. Married persons excepted from certain requirements; validation of certain naturalizations.
711. Same; spouse of United States citizen residing in United States in marital union prior to petition.
712. Same; alien whose spouse is United States citizen regularly stationed abroad by United States employer.
713. Children born outside United States; one parent a continuous United States citizen and other an alien subsequently naturalized.
714. Same; both parents aliens, or one an alien and other a citizen subsequently losing citizenship.
715. Same; one parent a United States citizen at time of petition.
716. Children adopted by United States citizens.
717. Former citizens of United States excepted from certain requirements; citizenship lost by spouse's alienage or loss of United States citizenship, or by entering armed forces of foreign state and acquiring its nationality.
718. Same; citizenship lost by parent's expatriation.
719. Same; minor child's citizenship lost through cancelation of parent's naturalization.
720. Persons misinformed of citizenship status excepted from certain requirements.
721. Nationals but not citizens of United States.
722. Puerto Ricans.
723. Former citizens of United States; citizenship lost by entering armed forces of allied country during World War.
724. Persons serving in armed forces of United States.
725. Persons serving on United States Government or private vessels.
726. Alien enemies.
727. Administration of naturalization laws; rules and regulations; instruction in citizenship; forms; oaths; depositions; documents in evidence; photographic studio.
727a. Patriotic address to new citizens.
728. Registry of aliens.
729. Certificate of arrival.
730. Photographs.
731. Declaration of intention.
732. Petition for naturalization.
733. Hearing of petitions; preliminary hearings.
734. Same; final hearings.
735. Oath of renunciation and allegiance.
736. Certificate of naturalization.
737. Functions and duties of clerks of courts.
738. Revocation of naturalization.
739. Certificates of derivative citizenship.
740. Revocation of certificates issued by Commissioner or deputy.
741. Documents and copies issued by Commissioner or deputy.
742. Fiscal provisions; fees.
743. Same; mail.
744. Same; textbooks for citizenship instruction.
745. Compilation of naturalization statistics.
746. Penal provisions.
(a) Offenses against chapter.
(b) Application of section to copies and duplicates of documents.
(c) Application of section to courts having jurisdiction of naturalization proceedings.
(d) Penalties for violating subsection (a).
(e) Penalties for failure to respect subpena for final hearing.
(f) Violation of franking privilege; penalty.
(g) Statute of limitations.
(h) Law governing prosecution of crimes committed before effective date of chapter.
(i) Evidence of government employees as to false oaths, etc.
(j) Clerks of courts; failure to comply with law generally.
(k) Clerks of courts; failure to account for certificates of naturalization.
(l) Application of section to registry of aliens.
747. Saving clauses.

### SUBCHAPTER IV.—LOSS OF NATIONALITY

800. Right of expatriation.
801. General means of losing United States nationality.
802. Presumption of expatriation.
803. Restrictions on expatriation; residence in United States; age.
804. Expatriation of naturalized nationals by residence abroad.
805. Same; exception in case of persons employed or compensated by United States.
806. Same; further exceptions.
807. Same; minor children of naturalized American nationals losing nationality by foreign residence.